

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4294

Pae of the House

and

Stanley of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to health insurance; directing fair
12 coverage for individuals with epilepsy; disallowing
13 termination of coverage for individuals diagnosed
14 with epilepsy; providing coverage for devices or
15 surgeries for epilepsy if certain criteria are met;
16 providing for codification; and providing an
17 effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 6060.31 of Title 36, unless
21 there is created a duplication in numbering, reads as follows:

22 A. All individual and group health insurance policies that
23 provide medical and surgical benefits shall provide the same
24 coverage and benefits to any individual who has been diagnosed with

1 epilepsy as the policy would provide coverage and benefits to an
2 individual who has not been diagnosed with epilepsy.

3 B. No insurer shall terminate coverage or refuse to renew an
4 individual's health insurance coverage solely based upon the
5 individual's diagnosis of epilepsy.

6 C. To reduce the risk of death from sudden unexpected death in
7 epilepsy (SUDEP), all individual and group health insurance policies
8 that provide medical and surgical benefits shall adopt medical
9 policies that provide coverage for medically necessary
10 neurostimulation devices if prescribed by a licensed physician who
11 is actively treating the enrollee.

12 SECTION 2. This act shall become effective November 1, 2026.

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14 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
15 OVERSIGHT, dated 03/04/2026 - DO PASS, As Amended.
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